

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

2nd CONFERENCE COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL 2

By: Paxton, Thompson, and
Seifried of the Senate

and

Caldwell (Trey) of the
House

2nd CONFERENCE COMMITTEE SUBSTITUTE

An Act relating to the Oklahoma Wind Energy
Development Act; amending 17 O.S. 2021, Section
160.13, which relates to definitions; adding
definitions; updating statutory language;
establishing certain setback requirements; stating
exceptions; clarifying site control; providing for
codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 17 O.S. 2021, Section 160.13, is
amended to read as follows:

Section 160.13. As used in the Oklahoma Wind Energy Development
Act:

1. "Abandonment" means the failure to generate electricity from
commercial wind energy equipment for a period of twenty-four (24)
consecutive months for reasons other than curtailment, repowering, a

1 valid judicial order or other governmental regulatory action, with
2 no pending negotiations for purchase. A wind energy facility shall
3 not be considered abandoned if the owner or operator has elected not
4 to run the facility, but it has been maintained in proper working
5 order and is capable of generating electricity;

6 2. "Commencement of construction" means beginning excavation of
7 wind turbine foundations or other actions relating to the actual
8 erection and installation of commercial wind energy equipment. It
9 shall not include erection of meteorological towers, environmental
10 assessments, surveys, preliminary engineering or other activities
11 associated with assessment of development of the wind resources on a
12 given parcel of property;

13 3. "Commercial generation date" means the date on which the
14 wind turbine in question first generates electrical energy in
15 commercial quantities;

16 4. "Commercial wind energy equipment" means a wind tower and
17 turbine with five hundred (500) kilowatts ~~(500kw)~~ or greater of
18 total nameplate generating capacity;

19 5. "Commercial quantities" means an amount of electrical energy
20 sufficient for sale or use off-site from a wind turbine or wind
21 energy facility, and shall not include amounts of electrical energy
22 used only for the maintenance or testing of the wind turbine or wind
23 energy facility itself;

1 6. "Dwelling" means a structure occupied by one or more persons
2 for at least six (6) months during a single calendar year or which
3 is occupied by one or more persons for an average of more than fifty
4 percent (50%) of the time during any other period of time in excess
5 of one (1) year. As used in this section, dwelling shall not
6 include a motor home or recreational vehicle;

7 7. "Nonparticipating property line" means the property boundary
8 of a parcel not subject to a written agreement with the owner or
9 operator of a wind energy facility concerning siting, compensation,
10 easement, or participation;

11 8. "Owner" means the entity having a majority equity interest
12 in commercial wind energy equipment, including their respective
13 successors and assigns;

14 9. "Tip height" means the maximum height of a wind turbine
15 measured from the ground to the tip of the blade at its highest
16 point of rotation;

17 ~~7.~~ 10. "Useful life" means the time during which a wind turbine
18 or wind energy facility is generating electricity in commercial
19 quantities;

20 ~~8.~~ 11. "Wind turbine" means a wind energy conversion system
21 which converts wind energy into electricity through the use of a
22 wind turbine generator and includes the turbine, blade, tower, base
23 and pad transformer, if any; and
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1 ~~9.~~ 12. "Wind energy facility" means an electrical generation
2 facility consisting of one or more wind turbines under common
3 ownership or operating control, and includes substations,
4 meteorological data towers, aboveground and underground electrical
5 transmission lines, transformers, control systems, and other
6 buildings or facilities used to support the operation of the
7 facility, and whose primary purpose is to supply electricity to an
8 off-site customer or customers. Wind energy facility shall not
9 include a wind energy facility located entirely on property held in
10 fee simple absolute estate by the owner of the wind energy facility.

11 SECTION 2. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 160.20.1 of Title 17, unless
13 there is created a duplication in numbering, reads as follows:

14 A. Commercial wind energy equipment shall:

15 1. Not be located within two and one-half times the tip height
16 from the outer wall of a dwelling unless waived in writing by the
17 owner of the dwelling and filed of record with the county clerk in
18 the county where the tract or tracts are located; and

19 2. Not be located within one and one-half times the tip height
20 of a nonparticipating property line unless waived in writing by the
21 owner of the relevant nonparticipating property and filed of record
22 with the county clerk in the county where the tract or tracts are
23 located.

24

1 B. Setbacks shall be measured from the closest part of the wind
2 turbine base to the outer wall of the dwelling or nonparticipating
3 property line using standard industry practices, and no extra
4 setback or buffer is required.

5 C. The provisions of this section shall not apply to small or
6 community-scale wind systems serving on-site load with a rated
7 capacity of less than one (1) megawatt.

8 D. The provisions of this section shall not apply to wind
9 energy facilities and applications for which the majority of the
10 site control for the project is obtained, or the developer has filed
11 for a queue position with the Southwest Power Pool or any other
12 regional transmission operator. The majority of site control shall
13 be when eighty-five percent (85%) of the land leases for the project
14 have been obtained.

15 SECTION 3. This act shall become effective November 1, 2026.

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